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Case Number: 25STCV01155 Hearing Date: July 17, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion for Attorney

Fees

Plaintiff's Motion for Attorney Fees is granted in the reduced amount of \$13,958.01.

BACKGROUND

Plaintiff Scott Anthony Harris (Plaintiff) filed this Song-Beverly Consumer Warranty Act (Civ. Code, § 1790 et seq.) action against General Motors LLC (Defendant), alleging that he purchased a vehicle manufactured by Defendant that subsequently manifested defects.

On September 9, 2025, the parties agreed to settle the action, with Plaintiff as the prevailing party for purposes of seeking attorney fees and costs. The Court dismissed the action on December 29, 2025.

Plaintiff filed a Motion for Attorney Fees. Defendant filed an Opposition.

LEGAL STANDARD

A prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b).) Attorney's fees are also recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) The moving party bears the burden of establishing entitlement to attorney fees. (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320 (Alnor).)

Civil Code section 1794, subdivision (d) provides that a buyer who prevails in an action under that section, "shall be allowed by the court to recover as a part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and the prosecution of such action."

ANALYSIS

Plaintiff seeks \$26,002.51 in total fees and costs based on \$19,860.00 in attorney fees, a 0.2 multiplier (\$3,972.00), and \$2,170.51 in costs and expenses.

I. Timeliness

Defendant argues that the motion should be denied outright as untimely.

A motion claiming attorney fees for services rendered through the rendition of judgment must be served and filed within the time for filing a notice of appeal. (Cal. Rules of Court, rule 3.1702(b)(1).) That time is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (Cal. Rules of Court, rule 8.104(a)(1).) Rule 3.1702 does not require an appealable order or judgment; a voluntary dismissal that concludes the litigation and triggers a right to fees starts the clock. (*Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 (*Hatlevig*).) In *Hatlevig*, the plaintiff's counsel reported a settlement with Defendant to the trial court, which ordered a dismissal to be filed within 45 days, and the clerk later mailed notice that the case would be deemed dismissed on a date certain unless a dismissal was filed or good cause shown. Neither occurred. The Court of Appeal held that the case stood dismissed on the date fixed in the clerk's notice, and that a fee motion served nearly two months after 180 days had run from that date was untimely. (*Id.* at p. 650.)

Defendant asserts that this action was dismissed on October 21, 2025. (*Opp.* at p. 3:25-26.) It was not. Plaintiff filed a Notice of Settlement of the Entire Case on October 21, 2025. (*Pengilley Decl.* ¶ 64.) The next day, the Court placed the matter in a conditional settlement stay and set an order to show cause regarding dismissal. (*Id.* at ¶ 65.) The Court dismissed the action on December 29, 2025. (*Ibid.*) One hundred eighty

days later was June 27, 2026, and Plaintiff served and filed this motion on June 1, 2026. The 60-day period never began, because nothing in the record shows that the clerk or a party served notice of entry of the dismissal. (See Cal. Rules of Court, rule 8.104(a)(1)(A)-(B).)

Notably, Hatlevig did not concern a conditional settlement. (Hatlevig, *supra*, 118 Cal.App.5th at p. 648.) Thus, under California Rules of Court, rule 3.18385(b), the court was required to dismiss the case 45 days after it received the notice of settlement. In contrast here, Plaintiff's Notice of Settlement of the Entire Case indicated a conditional settlement and, pursuant to rule 3.18385(c)(1), specified the date by which the dismissal was to be filed, December 12, 2025. Absent a showing of good cause, the Court was required to dismiss within 45 days of this later date (Cal. Rules of Court, rule 3.18385(c)(2)), as indeed, it did. Accordingly, the motion is timely.

II. Lodestar

Courts begin this inquiry "with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) From there, the "lodestar figure may then be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid.) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

A. Hourly Rate

Plaintiff requests \$545 per hour in 2025 and \$575 per hour in 2026 for Stephanie Pengilley; \$675 per hour for Victor Block,; \$500 per hour for Armig Khodanian and Daniel Law; \$450 per hour for Andrea Plata; \$400 per hour for David Derderian; 325 per hour for Ellie Comaschi; and \$125 per hour for paralegals, legal assistants, and case managers. (Pengilley Decl. ¶¶ 3-16, Ex. A.)

"In determining hourly rates, the court must

look to the 'prevailing market rates in the relevant community.' [Citation.] ... In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees. [Citation.] The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate. [Citation.] 'Affidavits of the plaintiffs' attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate.' [Citation.]" (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Because lemon law cases are typically brought on a contingency basis, the Court considers that factor in determining the reasonable hourly rate. (See *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395 ["The contingency adjustment may be made at the lodestar phase of the court's calculation or by applying a multiplier to the noncontingency lodestar calculation (but not both)."].) The Court finds, based on Pengilley's declaration and the Court's own experience, that the requested attorney hourly rates are reasonable for attorneys with their experience, working on a contingency basis. The \$125 rate for paralegals is also reasonable.

B. Hours Billed

Next, the Court considers whether the 31.0 hours Plaintiff's counsel billed are reasonable. Plaintiff separately seeks a flat fee of \$4,500.00 for services rendered before the Complaint. (Pengilley Decl. ¶¶ 20-21, Ex. A.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488.)

1. Flat Fee for Pre-Complaint Work

Defendant argues that the \$4,500.00 flat fee is not compensable, relying on *Dominguez v.*

American Suzuki Motor Corp. (2008) 160 Cal.App.4th 53, 58. (Opp. at p. 5:4-17.) Dominguez addressed a manufacturer that offered to repurchase the vehicle before the complaint was filed, after which the plaintiff sued only to recover a civil penalty and fees. That is not what happened here, and, generally, a party may recover statutory attorney's fees for work performed before the complaint. (See Hogar Dulce Hogar v. Community Development Com. of City of Escondido (2007) 157 Cal.App.4th 1358, 1370 [noting "pre-complaint attorney fees have been permitted"].)

However, the flat fee is only partially supported. Civil Code section 1794, subdivision (d), permits an award of fees "based on actual time expended." Counsel keeps no record of the time spent before the Complaint. She declares that it "would be impractical to keep track of billables during the intake stage," and that the flat rate "is equal to nine hours of time at a rate of \$500." (Pengilley Decl. ¶ 21.) That figure is a derivation from the fee, not a record of hours, and no timekeeper is identified for the nine hours. The single entry also bundles the preparation of the Attorney-Client Retainer Agreement, which is the firm's own business, together with work that would otherwise be compensable, and there is no basis in the record to separate them. (Pengilley Decl., Ex. A.) Where a fee applicant keeps no record of the time expended, the Court may reduce the award to account for that failure rather than strike the hours altogether. (Alnor, supra, 165 Cal.App.4th at p. 1320 [the court "may properly reduce compensation on account of any failure to maintain appropriate time records"].) The Court credits half of the asserted nine hours as reasonably expended on compensable pre-Complaint work and deducts the remainder, a reduction of \$2,250.00.

2. Deposition of Defendant's Person Most Qualified

Victor Block billed 5.5 hours (\$3,712.50) to prepare for, take, and summarize the deposition of Defendant's person most qualified. Defendant asks the Court to allow 2.5 hours. (Opp. at pp. 5:18-6:2.)

The initial deposition of a manufacturer's person most qualified may not exceed two hours and is limited to six enumerated topics. (Code Civ. Proc., § 871.26, subds. (c), (i).) Plaintiff billed 2.3 hours for an examination that the Legislature capped at 2, and the Court allows 2.0 hours for it. Preparation of 2.6 hours is excessive for an examination so confined,

particularly for an attorney with his experience in lemon law matters.

(Pengilley Decl. ¶ 11.) The Court allows 1.5 hours of preparation. The 0.6 hours Block spent summarizing the testimony is not clerical and is billable. The Court deducts 1.4 hours (\$945.00).

3. Deposition of Plaintiff

Daniel Law billed 2.8 hours (\$1,400.00) to prepare Plaintiff for his deposition and to defend it. Defendant asks for a fifty percent reduction because the entry is block billed. (Opp. at p. 6:4-13.)

“Blockbilling, while not objectionable per se in our view, exacerbates [s] the vagueness of counsel’s fee request...” (Alnor, supra, 165 Cal.App.4th at p. 1325.) Here, the entry describes related tasks performed on a single day, and 2.8 hours to meet a client, prepare him to testify, and defend his deposition is reasonable. The Court makes no deduction.

4. Written Discovery

Andrea Plata billed 2.0 hours (\$900.00) to draft form interrogatories, special interrogatories, requests for admission, requests for production, a supporting declaration, and a deposition notice. Defendant asks the Court to allow 0.5 hours. (Opp. at p. 6:14-19.) The requests Plaintiff served are substantially identical to those Plaintiff’s counsel served in another action against Defendant. (Kay Decl. ¶ 8, Exs. A, B.) Counsel acknowledges that the firm bills only for the time spent modifying and updating its forms. (Pengilley Decl. ¶ 19.) Given the templated nature of this work, the Court reduces the time to 1.0 hour, a deduction of 1.0 hour (\$450.00).

5. Opposition to Motion to Compel Initial Disclosures

Plata billed 1.9 hours (\$855.00) to draft the opposition to Defendant’s motion to compel Plaintiff’s initial disclosures and 1.8 hours (\$810.00) to attend the hearing. Defendant asks the Court to allow 1.0 hour. (Opp. at pp. 6:21-7:2.) Defendant’s motion succeeded, sanctions were issued, and the Court set an order to show cause regarding Plaintiff’s repeated noncompliance with the disclosure requirements. (Pengilley Decl. ¶¶ 61-62.) Time spent unsuccessfully resisting a motion made necessary by Plaintiff’s own failure to produce the documents Code of Civil Procedure section 871.26 requires was not reasonably incurred. The Court adopts Defendant’s proposed

reduction of 2.7 hours (\$1,215.00).

6. Fee Motion and Anticipated Time

Comaschi billed 4.6 hours (\$1,495.00), and Pengilley billed 1.9 hours (\$1,092.50) to prepare this motion, and Pengilley anticipates 5.0 additional hours (\$2,875.00) to review the Opposition, prepare a reply, and attend the hearing. Defendant argues that this time is excessive. (Opp. at p. 7:4-13.)

The Court agrees. The motion is templated. The declaration filed in support of it bears the caption of a different case, before a different judge, in a different department. (Pengilley Decl., p. 1.) The motion refers throughout to "Plaintiffs," though there is only one. A routine fee motion, reply, and hearing like this should not take more than 5 hours in total. The Court allows 2.5 hours for Comaschi (\$812.50) and 2.5 hours for Pengilley (\$1,437.50), a deduction of 6.5 hours (\$3,212.50).

III. Multiplier

A trial court may award a lodestar multiplier under Civil Code section 1794, subdivision (d). (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 821.) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum, supra, 24 Cal.4th at p. 1132.) "[W]hen determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar." (Id. at p. 1138.)

This case is not unusually complex and is typical of the cases that Plaintiff's counsel handles. Moreover, the contingent nature of the work is already reflected in the hourly rate. Therefore, the Court declines to award a multiplier.

IV. Costs and Expenses

Plaintiff additionally requests \$2,170.51 in costs and

expenses: \$475.25 in filing and motion fees, \$155.75 in jury fees, \$1,284.65 in deposition costs, \$37.50 for service of process, \$96.00 for electronic filing and service, and \$121.36 in other costs, consisting of a court appearance service and this action's one-twenty-second share of a mediator's fee for a session covering twenty-two matters. (Pengilley Decl., Exs. B, C.) The Legislature used the word "expenses" in section 1794, subdivision (d), to reach out-of-pocket items that the statutory definition of costs does not capture. (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138.)

"If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266, disapproved on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 205.) Statements in a memorandum of points and authorities and in counsel's declaration do not rebut that showing. (Ibid.)

Defendant objects to item 4, deposition costs of \$1,284.65, contending that the deposition exceeded the two-hour statutory limit "by over an hour (or about 40%)" and asking the Court to strike \$513.86. (Opp. at p. 9:9-13.) Defendant submits no transcript, no reporter's certificate, and no evidence of the examination's length; its counsel's declaration states only that Plaintiff's counsel took the deposition on June 3, 2025. (Kay Decl. ¶ 7.) The only evidence of duration is Plaintiff's invoice, which reflects 2.3 hours. The objected-to charge is for the original transcript of the deponent, not for the reporter's time. (Pengilley Decl., Ex. C.) Defendant does not explain why the price of a transcript would fall by forty percent had the examination closed eighteen minutes sooner. Defendant has not carried its burden. Defendant also identifies a single objectionable item worth \$513.86 and then asks for a reduction of \$636.86. (Opp. at p. 9:15.) The Court awards the full \$2,170.51 in costs and expenses.

CONCLUSION

Plaintiff's Motion for Attorney Fees is granted and fees and costs are awarded in the reduced amount of \$13,958.01.